Beijing tightens grip on AI exports without closing the diffusion door

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China’s draft AI export control framework, which sets thresholds based on training data, model size, performance, and scale, is an effort to extend Beijing’s control over Chinese models and prevent intellectual property (IP) transfers like the now-reversed Manus-Meta deal.
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Export licensing will apply to both open and closed models, though many open-weight releases and overseas deployments on Chinese-owned infrastructure may qualify for automatic licensing—a pathway that still brings new scrutiny and opportunities for control.
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The rules will expose third-country deployers of Chinese models to Beijing’s licensing risk, potentially undermining China’s strategy of spreading its models abroad.

Beijing wrote these rules to block transfers like the Manus-Meta deal and broaden its control over Chinese AI. Chinese AI firm Manus moved its operations and IP to Singapore and then sold itself to Meta last year . Beijing treated the transfer as a red line and ordered the deal unwound in April. The Ministry of Commerce (MOFCOM) developed these export rules to address the loophole, and will likely finalize the rules in the coming months. Meanwhile, firms must register exports in advance; DeepSeek and MiniMax, among others, have registered and obtained licenses for open-weight releases and overseas use.

Some thresholds break new ground, while others borrow from existing criteria. The draft revises a catalogue in use since 2001 and covers 23 AI technologies, alongside biotech and solar technologies, but model exports carry the most weight. The parameter count and the benchmark ranking are new; the compute threshold mirrors California’s SB 53 definition of a “frontier model” and the rescinded 2025 US AI diffusion rule. The data threshold is the broadest: Chinese models draw heavily on public and consumer data, but sectoral regulators define “important data,” and most of their catalogues are not public.

Fast-track allows Beijing control without forfeiting the global reach open models give its firms. MOFCOM’s test is whether restricted technology itself moves offshore. Open-weight releases and deployment on a Chinese provider’s own overseas infrastructure may qualify for a fast track that

MOFCOM describes as near-immediate “report and export”; self-hosted and sovereign deployments—a strong draw of Chinese models abroad—need Beijing’s sign-off. But even automatic licensing brings new scrutiny and potential control.

The framework’s vagueness creates compliance uncertainty. Firms who participated in MOFCOM consultations, and who discussed with Eurasia Group, say the approach is blunt, noting little evidence that models trained on sensitive data pose higher risk. Chinese officials call the quantitative thresholds objective, but tying compliance to a top-ten ranking on “mainstream” evaluations, without specifying which evaluations qualify, could in practice subject every high-performing model to licensing. Platforms must audit their training data against the 0.1% threshold, and smaller startups may assume they are in scope.

Enforcement will be light to start, but even with exemptions, a broad licensing regime risks undermining China’s diffusion strategy. Chinese firms expect initial enforcement to be light-touch, focused on disclosure rather than penalties. Chinese regulators often set ambitious thresholds in early drafts, then soften unworkable provisions. The Manus case shows the balance: Authorities forced the firm to unwind its deal, but it has since secured over $500 million in domestic funding.

Even a lightly enforced licensing regime will complicate China’s diffusion strategy. Chinese models have won global share by being open and cheap (see: A world run on Chinese AI models and US chips, 19 October 2026), and even a lightly-enforced licensing regime gives foreign adopters reason to reconsider. Existing open weights remain usable, and API access is exempt. However, users counting on future open releases now depend on Beijing clearing each one, while on-premise, sovereign, and customized deployments—along with deeper partnerships with Chinese AI firms—require case-by-case approval. A government or company building on a Chinese model must weigh whether Beijing will restrict the next version, on top of whether Washington will limit access to US frontier alternatives.

Washington is raising concerns, but a substantial US response is unlikely. MOFCOM delayed publication for months before judging that stable US-China ties and upcoming summits offered enough cushion to proceed. Eurasia Group contacts in Beijing see the rules as domestically aimed; the draft targets no specific country but promises easier cooperation with members of China’s World AI Cooperation Organization. Washington has objected, partly because of broad US use of Chinese models. Restrictions can also apply to models developed in China by US companies, curbing their ability to do R&D in-country and move IP across borders.

Ultimately, Beijing’s move is more likely to reinforce arguments for limiting Chinese models in sensitive US settings than to revive broad export restrictions, while China will pitch its country-neutral thresholds as a reference for international AI governance. Model selection is now a political decision in every market, with US and Chinese alternatives each carrying government conditions.

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